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TAB 9



Board of Education Report

File #: Rep-138-23/24, **Version:** 1

Authorization to Negotiate and Enter into Agreements with Three Organizations for the Construction of Greening Projects on a Portion of Four School Sites

December 12, 2023

Facilities Services Division

Action Proposed:

Authorize the Chief Facilities Executive and/or their designee to negotiate and enter into development and maintenance agreements, and any other reasonable instruments deemed necessary, with three nonprofit organizations for the construction of greening projects, as more particularly described on Exhibit A, on a portion of four school sites, as follows:

- The Trust for Public Land (TPL) for the construction of a greening project at 107th Street Elementary School (107th St. ES);
- TreePeople, Inc. (TPI) for the construction of a greening project at Wilmington STEAM Magnet Middle School (Wilmington STEAM Magnet MS), and for the construction of a greening project at Middleton Street Elementary School (Middleton ES); and
- The Los Angeles Neighborhood Land Trust (LANLT) for the construction of a greening project at 52nd Street Elementary School (52nd St. ES).

The projects are anticipated to provide each school with improvements such as permeable play areas and/or outdoor classrooms, native landscaping, shade trees, and improved site drainage and storm water runoff (project details included in Exhibit A).

Background:

The State of California, via several different agencies and departments (State), has established various programs to add green spaces and trees to communities to increase health and climate benefits, reduce greenhouse gas emissions, mitigate extreme heat, and provide enhanced learning environments in school communities (Greening Programs).

The four greening projects are collaborations between the Los Angeles Unified School District (Los Angeles Unified or District) and third-party organizations that applied directly to the State and were awarded design and construction funding to develop projects at District schools. The three partner organizations proposing to construct greening projects on a portion of four Los Angeles Unified school sites (Project Proposers) are the official grantees of the Greening Program funding and are required to submit supporting documentation to demonstrate their ability to carry out the greening projects. For projects developed on property not owned by the Project Proposers, the State requires agreements with the property owner giving the Project Proposers legal access and permission to construct and maintain the project on the property. The State will not disperse any grant funds prior to the execution and subsequent submittal of such agreements.

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The greening projects will be constructed by the Project Proposers and will be solely funded by the State with potential matching funds from the Project Proposers. The improvements will be owned by Los Angeles Unified upon completion of construction.

Exhibit A includes the proposed greening projects for each of the four schools including Board District, Region, Project Proposers, project descriptions, grantors, their corresponding grant program funding amounts, anticipated construction start and finish dates, and maintenance obligations.

Expected Outcomes:

Adoption of the proposed action will enable staff to execute the development and maintenance agreements with the Project Proposers and subsequently enable the State to disburse funding to the Project Proposers for the greening projects.

Board Options and Consequences:

Adoption will permit Los Angeles Unified to negotiate and execute development and maintenance agreements and any other reasonable instruments to allow the Project Proposers to proceed with the design and construction of the greening projects.

If not adopted, the Project Proposers will be unable to secure the Greening Program funding from the State. Furthermore, students, staff, and the community will not benefit from the greening improvements that are proposed to be undertaken.

Policy Implications:

The proposed action advances Pillar 2 Joy and Wellness Welcoming Learning Environments of the Los Angeles Unified 2022-2026 Strategic Plan by constructing greening projects at District schools. Additionally, it supports several Los Angeles Unified Board Resolutions including the Creating New School Gardens and Campus and Community-Shared Green Spaces to Provide Outdoor Learning Opportunities and Create Sustainable and Healthy Environments Resolution, the Expand Sustainable Schoolyards and Environmental Initiatives and Curriculum Resolution, as well as the Green Schools for All: Equitable Funding and Expansion of Green Spaces across District Campuses Resolution.

Budget Impact:

The activities associated with negotiating and executing development and maintenance agreements with the Project Proposers require staff time from the Facilities Services Division and the Office of the General Counsel. Los Angeles Unified funding is not needed to implement the proposed greening projects. The Project Proposers will fully fund the greening projects including, but not limited to, the planning, design, review, testing, inspection, construction, and ancillary costs required by Los Angeles Unified, with the Grant Program funding awarded to them by the State. Any potential cost increases associated with the greening projects are the sole responsibility of the Project Proposers. If the Project Proposers are unable to fund the greening projects as scoped, a value engineering approach will be implemented to ensure the completion of the projects.

Los Angeles Unified will be responsible for maintaining the areas upgraded by the greening projects in accordance with its annual Maintenance and Operations (M&O) budget, standards, and specifications. Los Angeles Unified will not be obligated to increase its annual M&O budget to provide additional maintenance for the greening projects at the four schools. The greening projects will be added to the District's existing inventory and maintained with, and to the degree permitted by, funding and resources available to Los Angeles Unified at any particular time. Maintenance of the greening projects will not cause an additional impact to Los Angeles Unified's General Fund.

Student Impact:

The greening projects, once complete, will provide the students attending the four schools with various improvements that help promote learning and may include removal of asphalt, additional green space, shade, outdoor learning environments, native plants, and shade trees.

Equity Impact:

Schools are selected by Project Proposers with emphasis and priority given to projects that are located within and benefit disadvantaged communities and those communities facing the most significant threat from extreme heat.

Issues and Analysis:

Staff has reached an agreement with the Project Proposers on the material terms of the development and maintenance agreements for the design, construction, and maintenance of the greening projects. The material terms of the development and maintenance agreements are as follow:

1. The greening projects require compliance with all laws, rules, regulations, and standards for public school construction, the cost of which will be borne solely by the Project Proposers, including, but not limited to:
 - a. The Field Act and all other applicable Division of the State Architect (DSA) requirements, such as accessible path-of-travel to comply with the Americans with Disabilities Act (ADA).
 - b. Requirements, including improvements that arise from the Department of Toxic Substance Control (DTSC) and California Environmental Quality Act (CEQA) review, which shall be conducted under the oversight of the Los Angeles Unified's Office of Environmental Health and Safety (OEHS).
 - c. Los Angeles Unified facilities standards, design standards, and technical specifications for construction, as well as compliance with all design review and approval processes. Specifically, the greening projects shall not infringe upon or reduce outdoor physical education areas and/or teaching stations, impact fire life and safety and emergency areas, or conflict with the campus master plan.
 - d. The architect, construction manager, general contractor, or multiple prime contractors, engineers, consultants, and professionals retained for the greening project shall be licensed, as applicable, and in good standing and authorized to do business in the State of California. In addition, the general contractor must be on Los Angeles Unified's Safety Prequalified list.
 - e. The greening projects shall satisfy Los Angeles Unified requirements with regard to construction on a school site, including, but not limited to, the payment of prevailing wages (unless the Project Proposers can provide an exemption from the Department of Industrial Relations with regard to the payment of prevailing wages) and a performance bond in an amount no less than one hundred percent (100%) of the construction cost of the greening projects, and the use of Los Angeles Unified Inspectors certified by DSA. The cost for the Inspectors will be paid by the Project Proposer.
2. The State stipulates that all projects constructed with Grant Program funding shall be maintained

and operated for various periods as noted in Exhibit A. With regard to the maintenance of the greening projects, the Project Proposers and Los Angeles Unified acknowledge that:

- a. The greening projects will be designed in such a way to, among other things, minimize the M&O burden thereof on Los Angeles Unified, reduce any adverse impact to the school, and provide future flexibility to Los Angeles Unified and the schools.
 - b. All planting material will be drought tolerant and/or as low maintenance as possible to maximize tree and shrub survivability and the Project Proposers may be required to replace planting material (shrubbery and similar materials but not fields and decomposed granite material, if any) for the first six months and trees for up to one year after installation, at Project Proposer's sole cost.
 - c. Other than the Project Proposer's obligation to replace planting material, Los Angeles Unified will maintain the greening project areas in accordance with (and to the degree permitted by) its annual M&O budget, and standards and specifications at the time (as they may change during the required term of the Grant Program). Los Angeles Unified shall not be obligated to increase its annual M&O budget to account for the addition of the greening projects in the inventory of sites/areas serviced. The greening projects will be added to the District's existing inventory and maintained with, and to the degree permitted by, funding and resources available to Los Angeles Unified at any particular time.
 - d. The Project Proposers will continue to work with Los Angeles Unified, and in particular the school principal, and other third parties to identify additional opportunities to support the greening projects.
 - e. The Project Proposers shall indemnify, defend and hold harmless Los Angeles Unified from and against any claims, damages, costs, expenses or other liability of any kind (particularly the liability to repay the State for all or a portion of the Grant Program funding) arising from any claim or finding by the State (or any agency or instrumentality thereof, including, without limitation, any state or local court) that the Project Proposers have failed to comply with any term or condition of the Grant Program.
3. Upon completion of the greening projects, the improvements will be owned by Los Angeles Unified.
 4. If, upon completion of the greening projects, the Project Proposers request to make the greening project areas of the schools available for public use, staff will present a separate proposal to the Board for approval.

Attachments:

Exhibit A - Overview of Proposed Greening Projects

Informatives:

None

Submitted:

11/14/23

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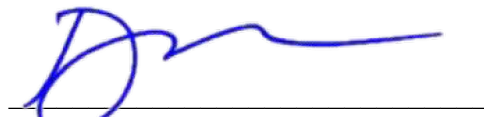
RESPECTFULLY SUBMITTED,


ALBERTO M. CARVALHO
Superintendent

APPROVED BY:


PEDRO SALCIDO
Deputy Superintendent,
Business Services and Operations

REVIEWED BY:


DEVORA NAVERA REED
General Counsel

☒ Approved as to form.

APPROVED BY:


KRISZTINA TOKES
Chief Facilities Executive
Facilities Services Division

REVIEWED BY:


NOLBERTO DEGADILLO
Deputy Chief Business Officer, Finance

☒ Approved as to budget impact statement.

PRESENTED BY:


AARON BRIDGEWATER
Director of Facilities Planning & Development
Facilities Services Division

Overview of Proposed Greening Projects										
BD	Board Member	Region	School Site	Project Proposers	Project Description	Grantor	Grant Program Funding	Anticipated Construction Start	Anticipated Construction Completion	Maintenance Obligation
7	Tanya Ortiz-Franklin	South	107th Street Elementary School	The Trust for Public Land	Removal of asphalt and construction of a green schoolyard with native landscapes, natural play areas, shade trees, vegetable gardens, and outdoor classrooms.	State of California Natural Resources Agency	\$2,750,000	Q2-2025	Q1-2026	25 years
5	Jackie Goldberg	East	Middleton Street Elementary School	TreePeople, Inc.	Removal of asphalt and the installation of trees, permeable and turf surfaces, and the creation of an outdoor learning space.	State of California Natural Resources Agency	\$2,969,192	Q1-2025	Q1-2026	25 years
7	Tanya Ortiz-Franklin	South	Wilmington Middle School STEAM Magnet	TreePeople, Inc.	Removal of asphalt, two (2) stormwater mitigation rain gardens that function as outdoor classrooms, installation of permeable surfaces, planting trees and native plants to support stormwater mitigation and infiltration and providing space for nature-based outdoor education and recreation activities.	State of California Natural Resources Agency /California Ocean Protection Council	\$2,269,526	Q2-2024	Q2-2025	20 years
1	Dr. George J. McKenna III	South	52nd Street Elementary School	Los Angeles Neighborhood Land Trust	Removal of asphalt and installation of trees, native habitat, green infrastructure swales (to capture, slow, and clean runoff), an outdoor classroom, a new California native turf field with a permeable running track, seating areas, and an edible school garden	California Strategic Growth Council	\$2,085,000	Q2-2025	Q4-2025	Not required